

25NNCV06319 25NNCV06319

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Case Number: 25NNCV06319 Hearing Date: August 14, 2026 Dept: A

TENTATIVE ORDER

AUGUST 14, 2026

MOTIONS TO COMPEL FURTHER RESPONSES

Los

Angeles Superior Court Case # 25NNCV06319

MP: Plaintiff Hgeiler Alvarez Tovar

RP: Defendants

BZ Property Management and XDZ Investment Group Enterprize, LLC

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given either by email at

 or by telephone at (818) 260-8412.

ALLEGATIONS:

Hgeiler Alvarez Tovar ("Plaintiff") alleges that he was a tenant of an apartment unit owned by BZ Property Management ("BZ") and XDZ Investment Group Enterprize, LLC ("XDZ") (together, "Defendants"). Plaintiff claims he notified Defendants on numerous occasions that one of the bedroom's ceilings had been leaking for months. On January 14, 2024, Plaintiff alleges his bedroom's ceiling collapsed and hit him.

The Complaint, filed September 9, 2025, alleges: (1) Negligence; and (2) Premises Liability.

MOTIONS ON CALENDAR:

There are four motions on calendar. On April 14, 2026, Plaintiff filed two Motions to Compel BZ's Further Responses to: (1) Form Interrogatories ("FROG"); and (2) Requests for Production of Documents ("RPD"). Plaintiff also filed two Motions to Compel XDZ's Further Responses to: (1) FROG; and (2) RPD. On August 5, 2026, Defendants filed untimely oppositions (due by August 3, 2026). On August 7, 2026, Plaintiff filed replies.

LEGAL STANDARD:

A motion to compel further interrogatory responses may be brought based on: (1) answers that are evasive or incomplete, (2) an unwarranted or insufficiently specific exercise of an option to produce documents in lieu of a substantive response, or (3) unmerited or overly generalized objections. (C.C.P. § 2030.300(a).)

A motion to compel further RPD responses may be brought based on: (1) incomplete statements of compliance; (2) inadequate, evasive, or incomplete claims of inability to comply; or (3) unmerited or overly generalized objections. (C.C.P. § 2031.310(a).) A motion to compel further production must set forth specific facts showing good cause justifying the discovery sought by the inspection demand. (C.C.P. § 2031.310(b)(1).) "Good cause" is shown by "a disputed fact that is of consequence in the action and the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact." (Digital Music News LLC v.

Superior Court (2014) 226 Cal.App.4th 216, 224.)

A motion to compel further must be accompanied by a meet and confer declaration. (C.C.P. §§ 2030.300(b)(1), 2031.310(b)(1), 2033.290(b)(1).) Additionally, the motion must be made within 45 days of service of the verified response or supplemental verified response, or on/before any specific late date to which the parties have agreed in writing. (C.C.P. §§ 2030.300(c), 2031.310(c), 2033.310(c).)

ANALYSIS:

A.

FROG

Plaintiff moves to compel Defendants' further responses to FROG Nos. 4.1, 15.1, and 17.1.

As the motions are essentially identical, the Court will consider them together.

FROG No. 4.1 asks at the time of the incident whether there was in effect any policy of insurance through which Defendants were or might be insured in any manner for the damages, claims, or actions that have arisen out of the incident. If so, for each policy, Defendants were asked to state: (a) the kind of coverage; (b) the name and address of the insurance company; (c) the name, address, and telephone number of each named insured; (d) the policy number; (e) the limits of coverage for each type of coverage contained in the policy; (f) whether any reservation of rights or controversy or coverage dispute exists between Defendants and the insurance company; and (g) the name, address, and telephone number of the custodian of the policy.

In

their amended responses, Defendants each objected that the FROG was vague, overbroad, and irrelevant; and sought attorney-client and work doctrine privileged information. Subject to the objections, Defendants stated they would identify non-privileged insurance information. Defendants also objected that the subject premises located at 2542 Eduard Avenue, #12 in South El Monte as identified as the "PREMISES" is not an address that Defendants are aware of or recognize. In opposition, Defendants

acknowledge that insurance information is discoverable, but argue that they are not associated with the Eduard address such that it cannot run an insurance inquiry on an address it cannot identify/locate.

In reply

to the BZ motion, Plaintiff states that the parties stipulated to a corrected address on June 24, 2026, but BZ waited until August 4, 2026 to serve Second Amended Responses. The Second Amended Responses were not attached to the reply, such that the Court cannot review the responses nor ascertain the new address.

Plaintiff argues that the response is still incomplete because BZ identified the carrier, policy number, named insured, and policy period, but did not completely answer whether they were insured, the coverage limits, etc.

In

reply to the XDZ motion, Plaintiff states that the Second Amended Responses now provide substantive information that Plaintiff sought prior to filing the motion, including identifying the insurance policy and providing supporting facts, witnesses, and documents underlying XDZ's denials, affirmative defenses, and RFA responses, but argues that sanctions are appropriate because Defendant only supplemented responses after the motion was filed.

The

Court is not in receipt of the Second Amended Responses but it appears based on the replies that further responses were provided. As such, the motions are moot as to FROG No. 4.1. However, if Plaintiff finds BZ's Second Amended Responses incomplete, the parties should meet and confer regarding the supplemental responses prior to Plaintiff filing another motion.

FROG No. 15.1 asks Defendants to identify each denial of a material allegation and each special or affirmative defense in the pleadings and for each: (a) state all facts upon which they base the denial or special or affirmative defense; (b) state the contact information of all persons who have knowledge of those facts; and (c) identify all documents and other tangible things that support their denial or special or affirmative defense, and state the contact information of the person who has each document.

FROG No. 17.1 asks if Defendants' response to each RFA served with the FROGs is an unqualified admission and, if not, for each response that is not an unqualified admission: (a) state the RFA number; (b) state all facts upon which the response is based; (c) state the contact information of all persons with knowledge of those facts; and (d) identify all documents that support the response and contact information of persons who has each document/thing.

Defendants objected to FROG Nos. 15.1 and 17.1 on the same grounds above and responded, without waiving objections: "After a reasonable inquiry, Responding Party presently lacks sufficient information to respond further. Investigation and discovery are ongoing, and Responding Party reserves the right to supplement this response."

In reply to the BZ motion, Plaintiff states: "Defendant's Second Amended Responses now provide detailed substantive information that was not provided before Plaintiff filed the Motion. Defendant relies on preexisting records and information, including Work Order No. 438-1, its own property-management personnel, and a written witness statement to substantively answer Form Interrogatory Nos. 15.1 and 17.1. ... Accordingly, Defendant's subsequent supplementation shows that the Motion was necessary to obtain substantive responses and does not establish substantial justification for Defendant's earlier deficiencies." (Reply re BZ Motion at p.3.) In reply to the XDZ motion, Plaintiff states that the supplemental responses confirm that the motion was necessary such that sanctions are appropriate.

Again, it appears that the Second Amended Responses moot the motions as to FROG Nos. 15.1 and 17.1. As such, the motions are denied as to FROG Nos. 15.1 and 17.1.

The motions to compel Defendants' further responses to FROG Nos. 4.1, 15.1, and 17.1 are denied as moot in light of the Second Amended Responses. The only remaining issue is sanctions.

B.
RPD

Plaintiff moves to compel Defendant's further responses to RPD Nos. 1-4, 6-10, and 12-21.

The RPDs seek the following documents:

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RPD Nos. 1-2: Any and all photographs, including motion pictures and videotapes, of: (1) the incident; (2) Plaintiff's injuries arising out of the incident; and (3) the ceiling.

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RPD No. 4: Any and all Declarations pages from insurance policies which may afford any form of coverage to Defendants for Plaintiff's claim arising out of this lawsuit.

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RPD No. 6: Any and all witness statements regarding the incident and/or Plaintiff's injuries.

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RPD No. 7: Any and all statements from Plaintiff.

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RPD Nos. 8-9: Any and all documents which support your contention that Plaintiff was: (8) at fault for the incident; and (9) partially at fault for the incident.

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RPD No. 10: Any and all report of the incident prepared by anyone.

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RPD No. 12: Any and all documents, whether written, filmed or videotaped, constituting surveillance conducted on Plaintiff.

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RPD No. 13: Any and all documents that reflect ISO searches done on Plaintiff.

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RPD No. 14: Any and all documents reflecting any correspondence between Defendants

and Plaintiff concerning the incident.

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RPD Nos. 15-17: Any

and all documents identified in response to: (15) FROGs;
(16) SROGs; and (17) RFAs.

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RPD Nos. 18-21: Any

and all documents that support Defendants' contention
that: (18) anyone other than Defendants are at fault for Plaintiff's
injuries; (19) Plaintiff's injuries were not caused by Defendants;
(20) Plaintiff was not injured by the incident; and (21) Plaintiff's
medical treatment was unreasonable or unnecessary.

In their amended responses, Defendants objected that
the RPDs were vague, overbroad, and irrelevant, and that it was unaware of the
2542 Eduard Avenue premises. Without
waiving objections, it responded that "after a reasonable search and inquiry,
Responding Party will produce non-privileged documents, if any, responsive to
this Request that are in Responding Party's possession, custody, or control, at
a mutually agreeable time and manner, subject to any appropriate protective
order and redaction of private or confidential information."

In reply, Plaintiff argues that Defendants' Second
Amended Responses now provide detailed substantive information and documents
that were not provided before Plaintiff filed the motion, thereby showing the
motions were necessary and that sanctions are appropriate.

As further responses were provided, the motions to
compel Defendants' further responses to RPD Nos. 1-4, 6-10, and 12-21 are
denied as moot.

C.

Sanctions

Plaintiff seeks \$1,935 for each motion against
Defendants and their counsel of record (= [2.5 hours at \$750/hour] + [\$60 in
filing fees]). The Court finds that the
FROG and RPD motions are essentially identical as brought against each of the

Defendants.

As noted in the parties' meet and confer efforts, Defendants' objections, in part, were substantially justified as Plaintiff eventually clarified on June 24, 2026 (over two months after the motions were filed) the correct address at issue in the motions. In light of the corrected address, Defendants had substantial justification to hold their position that the Eduard address was not an address they recognized as a part of their business. Defendants then provided supplemental responses on August 4, 2026 (a little over a month after the corrected addresses were provided) to draft responses and gather documents pertaining to the corrected address. Failure to identify the proper address provided proper grounds for Defendants to object until such issues were corrected. As such, the Court declines to award Plaintiff attorney's fees.

RULING:

In the event the parties submit on this tentative ruling, or a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Plaintiff Hgeiler Alvarez Tovar's Motions to Compel Further came on regularly for hearing on August 14, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

THE MotionS to Compel DEFENDANT BZ PROPERTY MANAGEMENT'S FURTHER RESPONSES TO FORM INTERROGATORY NOS. 4.1, 15.1, AND 17.1 AND REQUESTS FOR PRODUCTION OF DOCUMENTS NOS. 1-4, 6-10, AND 12-21 ARE DENIED AS MOOT IN LIGHT OF THE SUPPLEMENTAL RESPONSES.

THE MotionS to Compel DEFENDANT XDZ INVESTMENT GROUP ENTERPRIZE, LLC'S FURTHER RESPONSES TO FORM INTERROGATORY NOS. 4.1, 15.1, AND 17.1 AND REQUESTS FOR PRODUCTION OF DOCUMENTS NOS. 1-4,

6-10, AND 12-21 ARE DENIED AS MOOT IN LIGHT OF THE
SUPPLEMENTAL RESPONSES.

NO SANCTIONS SHALL
BE AWARDED.

PLAINTIFF TO
PROVIDE NOTICE.

IT IS SO ORDERED.